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THE JAPANESE CHAMBER OF COMMERCE AND INDUSTRY IN VIETNAM

No: 09/2020JCCI

Ref: *Contribute opinions to Draft Circular promulgating the list of majors and careers using trained employees*

SOCIALIST REPUBLIC OF VIETNAM

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Hanoi,21 September, 2020

To: **- Ministry of Labor - Invalid and Society Affairs**

- Ministry of Justice

- Government Office

- Vietnam Chamber of Commerce and Industry

First of all, the Japanese Chamber of Commerce and Industry in Vietnam (JCCI) would like to say thanks for the support and cooperation of Government and agencies towards JCCI's activities during the past time.

Related to the Draft *"Circular promulgating the list of majors and careers using trained employees"*, we appreciate your considering a specific system for improving the skills of Vietnamese workers, which is an important issue for Japanese companies. Securing a high-quality workforce for the future is an essential element of corporate activities. Especially in these days, under intensification of international economic competition, this issue can be a factor that determines the rise and fall of companies.

However, we think there are a few concerns about this Draft Circular and we would like to raise those and to propose solutions of them as follows.

1/ There are many careers in enterprises that are not available in the education and training schools. Therefore, if this Circular is issued with the provisions that enterprises are only allowed using trained employees for all job positions, we are afraid that there is a risk that enterprises will not be able to recruit "trained employees". We guess that it leads to delay production, fail to meet order's deadline and enterprises have to compensate customers, then it can reduce Vietnam's competitiveness in the international export market because foreign partners always check very closely on the compliance of enterprises with Vietnam law when placing orders. If the enterprises do not meet the requirements of Vietnam law, enterprises will fail to meet requirements of the foreign partner.

2/ The recruitment and training of employees to work for enterprises is the autonomy of the enterprises. Therefore, we are concerned that the regulation about "forcing" enterprises to hire trained employees for all positions will restrain the autonomy right of the enterprises.

3/ With the aim of training as the employee can meet the needs of the job; therefore, when the employees already had skills or the enterprise can train the employees to make them be able to do jobs, we are apprehensive that there are risks that the training, retraining regulations to get certificates as in the Draft will make enterprises not only increase unnecessary costs, but also easily cause matter of taking advantage to make fake qualification while the quality of employees is still unresolved.

4/ According to the Draft, the construction of a list of majors and careers using trained employees is to limit accidents and occupational diseases and improve the quality of employees. However, with the issues of ensuring occupational safety and health, there are provisions under the Law on Occupational

Safety and Health. It is necessary to improve the quality of employees, but to solve this problem we need to reform the training program more suitable with the practices of the enterprises.

If the Government has policies to develop vocational training, there should also issue policies to develop enterprises, but it cannot force enterprises to recruit trained employees without meeting the requirements of enterprises. It can be causes of restrictions on production and business activities of enterprises and reduces the competitiveness of enterprises.

5/ Moreover, there would be disadvantage that it will directly affect the foreign investment environment of Vietnam because of high labor costs and strict conditions without ensuring order fulfilment.

6/ In case there are some careers that really need to be regulated on recruitment of trained employees, the Government and agencies should clearly define what level of work need to be trained, not just the general job name as in the Draft. Because there are many different positions in the same careers, including simple careers that only require unskilled workers without proficiency.

Besides, the Government and agencies also need to study and carefully consider the application roadmap to avoid the situation of "breakage" when enterprises simultaneously recruit trained people to work at the same time.

To solve abovementioned possible problems of the Draft Circular and make it more effective , JCCI respectfully proposes to revise this Draft Circular as follows.

1/ To clearify definitions of occupations and positions to be trained by the Government.

2/To specify occupations and positions to be trained by the Government.

3/To allow enterprises to facilitate self-training and self-issue certification for employees by revising current regulations such as no requiring vocational trainers in enterprises have a pedagogical certificate.

And it woud be much appreciated, if we could continue consultations with the Government about these issues to develop business of FDI companies including Japanese companies in Vietnam and strengthen competitiveness of Vietnamese economics.

Finally, JCCI will constantly make effort to become the connection for the socio-economic development of Vietnam as well as Japanese enterprise's development. JCCI will always represent for Japanese enterprises in Vietnam, collect the opinions of enterprise member and offer proposal to contribute more to the development of Vietnam. Therefore, we hope to continuously receive support and support from the Government and agencies.

Thank you very much!

Receiver:

- *As above*
- *Ministry of Investment and Planning – Bureau of Foreign Investment*
- *Embassy of Japan in Vietnam*
- *JCCH in Ho Chi Minh city*
- *JCCD in Da Nang*

On behalf of the Japanese Chamber of Commerce and Industry in Vietnam

Chairman

SUDO KAZUNORI